



Linda S. Adams
Acting Secretary for
Environmental Protection

California Regional Water Quality Control Board
North Coast Region
Geoffrey M. Hales, Chairman

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Edmund G. Brow, Jr.,
Governor

May 10, 2011

Dan Johnson
Danco Builders
5251 Ericson Way
Arcata, CA 95521

Dear Mr. Johnson:

Subject: Enrollment in General Waste Discharge Requirements (DWQ Order No. 97-10) for the Willow Creek Apartments Project, Willow Creek, Humboldt County

File: Willow Creek Apartments, 51 Brannon Mountain Road, Willow Creek
WDID NO. 1B06162RHUM

My staff has completed review of the report of waste discharge dated November 6, 2006, for the Willow Creek Apartments Project located at 51 Brannon Mountain Road in Willow Creek. The project is eligible for coverage under State Water Resources Control Board General Order No. 97-10-DWQ.

Project Description

The Willow Creek Apartments Project is a new 24-unit multi family housing complex (10 three-bedroom units, 10 two-bedroom units, and 4 single bedroom units, 54 bedrooms total). The project consists of four main apartment buildings, with a community building that houses a laundry facility and utility/maintenance sink. The Permittee proposes an onsite wastewater treatment and disposal system. The wastewater treatment and disposal system was developed based upon a Type I, class D code system designed per the requirements of Humboldt County Department of Environmental Health (HCDEH) sewage disposal regulations. Additional treatment will be provided by an Advantex AX100 Treatment System. The four main buildings each have a 6,000 gallon septic tank. Each set of two buildings will flow into one 6,000 gallon septic tank, then serially into a second 6,000 gallon septic tank and then into a joint 6,500 gallon recirculation tank. The flow will then be pumped to three Advantex AX100 units and then to the leachfield. The leachfield will be a pressurized distribution system.

The treatment system will provide secondary treatment with nitrogen removal. The total maximum sewage design flow is estimated to be 8,100 gallons per day, based on an estimated 150 gallon per day per bedroom.

This Order includes monitoring and reporting requirements in Monitoring and Reporting Program Order No. R1-2011-0061. Order No. R1-2011-0061 requires surface inspections of the leachfield areas, effluent monitoring, collection of groundwater level data, and groundwater sampling downgradient of the leachfield areas.

CEQA Compliance

On March 6, 2001, the Office of Planning and Research of Humboldt County, as the lead California Environmental Quality Act agency, certified a Mitigated Negative Declaration for the Willow Creek Apartments Project. The Regional Water Board has considered the environmental document and any proposed changes incorporated into the project or required as a condition of approval to avoid significant effects to the environment.

Site Specific Conditions

1. The Permittee shall not discharge waste in excess of the maximum design and disposal capacity of the system.
2. The total maximum sewage flow shall not exceed 8,100 gallons per day.
3. The Permittee shall ensure that the subsurface disposal systems are maintained so that at no time will sewage surface at any location.
4. There shall be no discharge of waste to any watercourse.
5. An adequate replacement area equivalent to the initial disposal area shall be designated and reserved. Incompatible uses of the initial disposal areas or the replacement area is prohibited.
6. There shall be no discharge of waste to land not controlled by the Permittee.
7. All instances of noncompliance that may endanger public health or the environment shall be reported orally to the Regional Water Board as soon as possible, but no later than 24 hours from the time the Permittee

becomes aware of the circumstances, and a written report shall be submitted such that an original signed written report is received by the Regional Water Board no later than five days after the event.

8. The Permittee shall allow the Regional Water Board and/or other authorized representatives, upon presentation of credentials and other documents as required by law to: 1) enter upon the Permittee's premises where a regulated facility or activity is conducted to inspect at reasonable times any facilities, equipment, practices, or operations regulated or required by this permit, and 2) to sample or monitor at reasonable times for the purpose of assuring compliance to this permit, and 3) to have access to and copy, at reasonable times, any records that are required to be kept under the conditions of this permit.
9. All reports required by this permit or other information requested by the Regional Water Board, or the State Water Resources Control Board shall be signed by the principal executive officer or a duly authorized representative of that person. Any person signing a document under this requirement shall make the following certification:

“I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted, is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations”.
10. Except insofar as may be modified by any preceding conditions, this permit action is contingent on: a) the discharge completed in strict compliance with the applicant's project description, and; b) compliance with all applicable requirements of the Regional Water Board's Water Quality Control Plan for the North Coast Region (Basin Plan).
11. This Order is not transferable to any person except after notice to the Regional Water Board. The Regional Water Board may require modification or revocation and reissuance of the Order to change the name of the Permittee and incorporate such other requirements as may be necessary.

Enclosed is a copy of State Water Resources Control Board Water Quality Order No. 97-10-DWQ (enclosure 1). Also enclosed is Monitoring and Reporting Program No. R1-2011-0061 (enclosure 2). Order No. 97-10-DWQ is effective upon your receipt of this letter. Monitoring in accordance with Order No. R1-2011-0061 should begin forthwith.

If you have any questions, please contact Roy O'Connor of my staff at (707) 576-2670.

Sincerely,

Original signed by

Catherine Kuhlman
Executive Officer

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Enclosures:

- 1) State Water Resources Control Board Water Quality Order
No. 97-10-DWQ
- 2) Monitoring and Reporting Program No. R1-2011-0061

cc: Adam Molofsky, Humboldt County Health Department, 100 H Street,
Suite 100, Eureka, CA 95501

Dan Johnson, Willow Creek Family Associates, P.O. Box 306,
Lewiston, ID 83501

California Regional Water Quality Control Board
North Coast Region

MONITORING AND REPORTING PROGRAM NO. R1-2011-0061

FOR

**DANCO - WILLOW CREEK APARTMENTS
DOMESTIC WASTEWATER TREATMENT FACILITY**

Humboldt County

FLOW MEASUREMENT

Wastewater effluent flow to the leachfields shall be recorded monthly. The total monthly flow to the leachfields shall be reported on the quarterly monitoring report. All flow measurement devices shall be tested annually and their accuracy certified. Certification shall be submitted with the annual monitoring report. A detailed site map shall be submitted, which depicts the location and construction details of each groundwater monitoring well.

VISUAL MONITORING

The Permittee shall conduct surface inspections of all septic tanks, pretreatment units, filters and leachfields no less than monthly to record any odors, evidence of surface runoff, or other signs of malfunction or improper operation.

GROUNDWATER MONITORING

The purpose of groundwater monitoring is to determine compliance with water quality objectives for groundwater in the vicinity of the Permittee's subsurface wastewater disposal system.

1. Monitoring Locations

The groundwater monitoring wells shall be sampled twice yearly, during seasonal high and seasonal low groundwater conditions. Additional monitoring wells shall be added to the monitoring network as needed. Groundwater samples shall be analyzed for the constituents specified in Table 1.

2. Monitoring Schedule

Groundwater samples shall be collected from the groundwater monitoring wells quarterly and analyzed for the following constituents:

Table 1 Groundwater Monitoring Constituents

Constituent	Units	Type of Sample	Frequency
Total Nitrogen	mg/l	Grab	Quarterly
Nitrate Nitrogen	mg/l (as N)	Grab	Quarterly
Fecal Coliform Bacteria	MPN/ 100 ml	Grab	Quarterly

3. Groundwater Elevation Monitoring

The groundwater surface elevation in all wells shall be measured on a quarterly basis and used to determine groundwater depth and direction of flow. For each monitored groundwater well, the Permittee shall measure the water level and determine groundwater gradient and direction at least annually. Groundwater measurements shall be made prior to purging the well and sampling. The information for each monitoring well shall include top of casing elevation, the calculated depth to groundwater, and water table elevation for each monitoring well. This information shall be included in each quarterly report and summarized in the annual monitoring report.

SEPTIC TANK MONITORING

The Permittee shall make inspections of all septic tanks not less than monthly to record any odors, evidence of surfacing effluent, or other signs of malfunction. Septic tanks shall be pumped when any one of the following conditions exist or may occur before the next inspection:

- a. The combined thickness of sludge and scum exceeds one-third of the tank depth of the first compartment; or
- b. The scum layer is within three inches of the outlet device; or
- c. The sludge layer is within eight inches of the outlet device.

The Permittee shall record the date and waste hauler information whenever a septic tank is pumped. Receipts from the properly licensed waste hauler shall be submitted in conjunction with quarterly reports whenever tank pumping occurs.

Effluent Monitoring

The Permittee shall collect effluent samples prior to discharge to the leachfield to determine treatment system efficiency and suitability for disposal. Effluent samples are expected to contain less than 10 mg/l Nitrate. The effluent monitoring shall be as follows:

Table 2 Effluent Monitoring Constituents

Constituent	Units	Type of Sample	Frequency
Total Nitrogen	mg/l	Grab	Quarterly
Nitrate Nitrogen	mg/l (as N)	Grab	Quarterly

QUARTERLY MONITORING REPORT

For each quarter, a self-monitoring report shall be submitted to the Regional Water Board in accordance with the following:

1. The report shall be submitted by the first day of the second month following the end of the quarter, as follows:

Table 3 Monitoring Report Due Dates

<u>Reporting Period</u>	<u>Monitoring Period</u>	<u>Report Due Date</u>
1 st Quarter	January 1 – March 31	May 1 st
2 nd Quarter	April 1 – June 30	August 1 st
3 rd Quarter	July 1 – September 30	November 1 st
4 th Quarter	October 1 – December 31	February 1 st

2. *Letter of Transmittal:* Each report shall be submitted with a letter of transmittal. This letter shall include the following:
 - a. Identification of facility: Name, Address, Order number, and WDID number;
 - b. Date of report and monitoring period;
 - c. Identification of all violations of permit conditions found during the monitoring period;
 - d. Details of the violations: parameters, magnitude, test results, frequency, and dates;
 - e. The cause of the violation;
 - f. Discussion of corrective actions taken or planned to resolve violations and prevent recurrence, and dates or time schedule of action implementation;
 - g. Other relevant information including, but not limited to, incidents of wastewater treatment and collection system equipment failure, results of visual observations, and reports of wastewater spills or surfacing effluent; and
 - h. Authorized signature and certification statement.
3. *Results of Analyses and Observations* shall be incorporated into each report, including the following:
 - a. Tabulations of all required analyses, including parameter, sample date and time, sample station, and test result;

- b. Written summary of results of all visual monitoring conducted during the monitoring period that indicate non-compliance with provisions of waste discharge requirements; and
 - c. If the Permittee monitors any pollutant at the point of compliance or conducts visual inspection more frequently than required by this Permit, using test procedures approved under 40 CFR Part 136 or as specified in this Permit, the results of this monitoring shall be included in the calculation and tabulation of the data submitted in the Permittee's monitoring report.
4. *Report Submittal:* Copies of each monitoring report shall be mailed to:

North Coast Regional Water Quality Control Board
5550 Skylane Boulevard, Suite A
Santa Rosa, CA 95403

ANNUAL REPORT

The Permittee shall submit an annual report to the Regional Water Board for each calendar year. The report shall be submitted so that it is received by the Regional Water Board by March 1st of the following year. The report shall include, at a minimum, the following:

1. Tabular and, where appropriate, graphical summaries of the groundwater monitoring data and disposal records from the previous year. This includes summaries of quarterly groundwater gradient maps and groundwater quality data; and
2. A comprehensive discussion of the facility's compliance with waste discharge requirements, and the corrective actions taken or planned which may be needed to bring the discharge into full compliance with the Permit.

Ordered by: Original signed by
Catherine Kuhlman
Executive Officer

May 10, 2011